

# Security of Health Workers and Health Institutions Act, 2010

*Document type: act*

*Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs*

*Chunks merged: 7*

Health Workers and Health Institutions Security Act, 2066 (2009)

Certification and Publication Date

2066.1.21

Amending Acts

1. Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074 (2017) ? 2074.6.30
2. Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018) ? 2075.11.19
3. Health Workers and Health Institutions Security (First Amendment) Act, 2079 (2022) ? 2079.03.31

Act Number 2 of the Year 2066 (2009)

An Act Made to Make Provisions Relating to the Security of Health Workers and Health Institutions

Preamble: Whereas, it is desirable to make necessary legal provisions relating to the security of health workers and health institutions from accidental incidents and financial liabilities that may arise during the course of health treatment in order to make health services regular, reliable, dignified and effective;

Now, therefore, the Constituent Assembly has enacted this Act pursuant to sub-article (1) of Article 83 of the Interim Constitution of Nepal, 2063 (2007). 1. Short Title and Commencement: (1) This Act may be cited as the "Health Workers and Health Institutions Security Act, 2066 (2009)."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) Amended by the First Amendment."Health Worker" means a person registered in the relevant council as a health worker pursuant to the prevailing law.

(b) Amended by the First Amendment."Health Institution" means a government hospital operated by the Government of Nepal, Provincial Government or Local Level, a non-governmental hospital, private hospital, cooperative hospital, non-profit hospital, community hospital, teaching hospital or other health institution established or permitted to operate pursuant to the prevailing law, and such term also includes a holding center, quarantine, isolation or other similar place operated for the prevention, control, diagnosis and treatment of infectious diseases.

(c) "Security" means Amended by the First Amendment.financial and other security provided for a health worker, an employee working in a health institution, and a health institution pursuant to this Act.

(d) "Ministry" means the Ministry of Health and Population.

(e) "Committee" means the Health Workers and Health Institutions Security Coordination Committee formed pursuant to Section 5.

(f) "Fund" means the Health Workers and Health Institutions Security Fund formed pursuant to Section 12.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3.

Prohibition on Acts such as Assault, Lockout, Vandalism, etc.: Amended by the First Amendment.No person shall, on the subject of health treatment, commit or cause to commit the following acts:- (a) setting fire to a health institution, (b) vandalizing or causing damage or loss to a health institution by committing any other act, (c) beating a health worker or an employee working in a health institution or causing physical injury, (d) locking or besieging a health institution, (e) obstructing in any manner the treatment of patients who have come for or are undergoing treatment at a health institution, or (f) assaulting a health worker or an employee working in a health institution, threatening them in any manner, abusing them, or behaving indecently or insultingly. 4. Right to Demand Security: (1) If any person commits or attempts to commit any act contrary to Section 3 against any health worker Amended by the First Amendment.or employee working in a health institution or against a health institution, such health worker Amended by the First Amendment.or employee working in a health institution or health institution may demand security from the local administration. (2) Upon a demand for security pursuant to sub-section (1), the local administration shall immediately make arrangements for security. (3) If, considering a particular place and situation, services provided by any health institution are likely to be obstructed and a written request is made by the Committee for making permanent security arrangements, the Government of Nepal may make permanent security arrangements at such health institution. (4) Amended by the First Amendment.Other provisions relating to the security of a health worker, an employee working in a health institution, and a health institution shall be as prescribed. 5.

Provision Relating to Formation of Committee: Amended by the First Amendment.(1) For the purpose of working in a coordinated manner regarding the security of health workers, employees working in health institutions and health institutions, a Health Workers and Health Institutions Security Coordination Committee shall be formed as follows:- (a) One employee of the twelfth level of the Ministry, designated by the Secretary of the Ministry - Chairperson (b) One head of the relevant department of the Ministry, designated by the Secretary of the Ministry - Vice-Chairperson (c) Representative (at least gazetted second class), Ministry of Home Affairs - Member (d) President or a representative designated by him/her, Nepal Medical Council - Member (e) President or a representative designated by him/her, Nepal Nursing Council - Member (f) President or a representative designated by him/her, Nepal Medical Association - Member (g) President or a representative designated by him/her, Nepal Health Technicians Association - Member (h) President or a representative designated by him/her, Nepal Ayurvedic Medical Association - Member (i) President or a representative designated by him/her, Nepal Nursing Association - Member (j) President or a representative designated by him/her, Association of Private Health Institutes of Nepal - Member (k) A gazetted second class or equivalent officer of the Ministry, designated by the Secretary of the Ministry - Member-Secretary (2) Omitted by the First Amendment (3) The Secretariat of the Committee shall be located at the Ministry. (4) The Ministry shall provide the necessary staff for the Secretariat of the Committee. (5) The procedure for the meeting of the Committee shall be as prescribed. 6.

Functions, Duties and Powers of the Committee: The functions, duties and powers of the Committee shall be as follows:- (a) Amended by the First Amendment.To approve and implement or cause to implement plans and programs relating to the security of health workers, employees working in health institutions and health institutions, (b) Amended by the First Amendment.To maintain coordination among relevant bodies regarding the security of health workers, employees working in health institutions and health institutions, (c) To provide compensation to the concerned person from the side of Amended by the First Amendment.the health worker, employee working in a health institution or health institution pursuant to a court judgment, (d) Amended by

the First Amendment. To advise the Government of Nepal on the policies to be adopted regarding the security of health workers, employees working in health institutions and health institutions, (d1) Added by the First Amendment. To investigate or cause to investigate or assist in an investigation into incidents occurring at any health institution in a manner adverse to the security of health workers, employees working in health institutions and health institutions, (e) To perform such other functions as prescribed. 7. Requirement to Register Name: (1) Amended by the First Amendment. A health worker or health institution desiring to obtain security in accordance with the financial security under Sections 11 and 13 shall have their name registered with the Committee. (2) A health worker desiring to register their name pursuant to sub-section (1) shall submit an application to the Committee attaching the certificate obtained from the professional health council and a health institution shall attach the establishment certificate obtained pursuant to the prevailing law. Provided that a government health institution shall not be required to attach the establishment certificate. (3) If, upon inquiry into the application received pursuant to sub-section (2), it appears appropriate to register the name, the Committee shall register the name of such health worker or health institution in the registration book and provide the applicant with a certificate thereof in the format as prescribed. 8. Requirement to Pay Fee: (1) When applying pursuant to Section 7, a fee as prescribed shall be chargeable. (2) Amended by the First Amendment. A health worker or health institution registered pursuant to Section 7 shall pay to the Committee an annual fee as prescribed. Provided that, when a non-governmental health institution demands permanent security pursuant to sub-section (3) of Section 4, an additional fee as prescribed shall be chargeable. 9.

Removal of Name from Registration Book: The Committee shall remove the name of a health worker Amended by the First Amendment. or health institution registered pursuant to Section 7 from the registration book:- (a) if the Committee receives information that such person is disqualified from working in health services pursuant to the prevailing law, (b) if such person fails to pay the fee pursuant to sub-section (2) of Section 8, (c) if such person submits an application to the Committee requesting removal of their name from the registration book, (d) if the registration of the health worker or health institution is cancelled pursuant to the prevailing law. 10. Requirement to Keep Records Updated: The Committee shall keep updated the records of health workers and health institutions whose registration remains effective under this Act. 11. Committee to Bear Expenses Incurred in Defense: (1) In a suit filed in a court seeking compensation against a health worker or health institution registered pursuant to Section 7, the Committee shall bear the reasonable expenses incurred by the concerned health worker or health institution in their defense. Provided that the Committee shall not bear the expenses incurred in the defense concerning loss or damage caused due to the bad faith or gross negligence of the health worker or health institution. (2) A health worker Added by the First Amendment. or health institution registered pursuant to Section 7, desiring to claim expenses related to defense from the Committee under sub-section (1), shall provide the Committee with the details as prescribed. 12. Provision of Fund: (1) There shall be a Fund called the Health Workers and Health Institutions Security Fund. (2) The Fund shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received pursuant to Section 8, (c) Amount received from any other source. (3) The amount of the Fund shall be deposited by opening an account in a commercial bank within Nepal. (4) The operation of the Fund shall be as prescribed. 13.

Use of Fund: The amount deposited in the Fund may be expended on the following works:- (a) Added by the First Amendment. To pay the amount in accordance with the judgment of a court ordering compensation to the concerned person in relation to the service provided by any health worker or health institution registered pursuant to Section 7, Provided that the Committee shall not bear the amount of compensation to be paid to the concerned person in accordance with a court judgment regarding damage caused due to the bad faith or

gross negligence of the health worker or health institution. (b) Added by the First Amendment. To pay the reasonable expenses incurred in defending a suit filed in a court against a health worker or health institution registered pursuant to Section 7, (c) To operate the functions of the Committee. 14. Accounts and Audit: (1) The accounts of income and expenditure of the Fund shall be maintained in accordance with the prevailing law. (2) The audit of the Fund shall be carried out by the Auditor General. Amended by the First Amendment. 15. Offense and Punishment: (1) If any person commits any act as referred to in Section 3, they shall be deemed to have committed an offense under this Act. (2) If any person commits the following offenses, depending on the gravity of the offense, they shall be liable to the following punishments:- (a) In case of committing an offense under clause (a) of Section 3, imprisonment for a term of two to five years or a fine of two hundred thousand rupees to five hundred thousand rupees, or both, (b) In case of committing an offense under clause (b) or (c) of Section 3, imprisonment for a term up to three years or a fine up to three hundred thousand rupees, or both, (c) In case of committing an offense under clause (d), (e) or (f) of Section 3, imprisonment for a term up to one year or a fine up to one hundred thousand rupees, or both. (3) Where any loss or damage is caused to any health worker, employee working in a health institution or health institution by the acts of a person committing an offense under sub-section (1), the officer hearing the case shall also order the concerned offender to pay reasonable compensation for such loss or damage. (4) While ordering compensation under sub-section (3), if damage is caused to the property of a health institution by vandalism, arson or other loss or damage, an amount equal to such damage shall be ordered to be paid. Added by the First Amendment. 15A.

Detention for Trial: Notwithstanding anything written in the prevailing law, in a case punishable under clause (a) or (b) of sub-section (2) of Section 15, if the offender appears guilty from the evidence immediately available, or if there is reasonable ground to believe that the person is the offender, the officer hearing the case shall detain the accused for trial. 16. To be Governmental Case: Amended by the First Amendment. A case relating to an offense under Section 15 shall be a Governmental Case, and such case shall be deemed to be included in Schedule-1 of the National Criminal Procedure (Code) Act, 2074 (2017) [The original text notes: Words transformed by the Act to Amend, Consolidate, Adjust and Repeal Certain Nepal Laws, 2074 and amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075: "Section 15 of this Act is deemed to be included in Schedule-1 of the National Criminal Procedure (Code) Act, 2074".] Added by the First Amendment. 17. Limitation: A complaint must be filed within thirty-five days from the date of commission of the offense under Section 15. Added by the First Amendment. 17A. Officer Hearing the Case: (1) The concerned District Court shall have the authority to conduct initial proceedings and adjudicate a case punishable under clause (a) or (b) of sub-section (2) of Section 15. (2) The Chief District Officer of the concerned district shall have the authority to conduct initial proceedings and adjudicate a case punishable under clause (c) of sub-section (2) of Section 15. Added by the First Amendment. 17B. Appeal: A party not satisfied with the decision made by the Chief District Officer pursuant to sub-section (2) of Section 17A may file an appeal with the concerned District Court within thirty-five days from the date of such decision. 18. Power to Form Sub-Committee: (1) The Committee may, for the operation of its functions, form sub-committees as necessary, involving experts from the relevant fields. (2) The functions, duties, powers and procedures of a sub-committee formed pursuant to sub-section (1) shall be as prescribed by the Committee. 19. Meeting Allowance: Members of the Committee or of a sub-committee formed pursuant to Section 18 shall be entitled to a meeting allowance as prescribed for participating in a meeting of the Committee or sub-committee. 20. Delegation of Powers: The Committee may, as necessary, delegate some of the powers conferred upon it to any member of the Committee or to a sub-committee formed pursuant to Section 18. 21.